



DEPARTMENT OF NATURAL RESOURCES

Colorado Parks and Wildlife

CHAPTER W-13 - POSSESSION OF WILDLIFE, SCIENTIFIC COLLECTING, AND SPECIAL LICENSES

2 CCR 406-13

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

ARTICLE I - GENERAL PROVISIONS

#1300 - DEFINITIONS

- A. "Aquatic management" means taking or possessing fish, amphibians, crustaceans, or mollusks for the purpose of temporarily or permanently altering the composition of species in a body of water.
- B. "Bona fide scientific research" means: systematic investigative or experimental activities which are carried out for the purpose of acquiring new and relevant knowledge pertaining to wildlife biology, ecology or management, or the revision of accepted conclusions, theories, or laws in the light of newly discovered facts, and which are conducted in a humane fashion by qualified personnel, and the results of which would meet the accepted standards for publication in a refereed scientific journal.
- C. "Scientific collection" means take or possession of wildlife for inventory purposes, to estimate population size or ascertain distribution, taxonomic classification or for environmental assessment.

#1301 - POSSESSION

- A. No person shall, at any time, have in possession or under control any wildlife caught, taken or killed outside of this state which were caught, taken or killed at a time, in a manner, or for a purpose, or in any other respect which is prohibited by the laws of the state, territory or country in which the same were caught, taken or killed; or which were shipped out of said state, territory or country in violation of the laws thereof.

ARTICLE II - SCIENTIFIC COLLECTING LICENSE

#1315 - PURPOSE

- A. A scientific collecting license may be issued for the purpose of importing, marking, banding, or scientific collection.
- B. A scientific collecting license may be issued for the purpose of bird banding for educational purposes or for the possession of fish, mollusks, and crustaceans for educational purposes.
- C. A scientific collecting license may be issued for the purpose of conducting bona fide scientific research.

- D. A scientific collecting license may be issued for the purpose of teaching survey techniques in a post-secondary educational setting. Licenses granted under this subsection are valid only for Rodentia, Insectivora, Chiroptera, long-tailed weasel (*Mustela frenata*), short-tailed weasel or ermine (*Mustela erminea*), fish, or amphibians. Animals captured under this subsection must be released immediately at the capture site after identification and necessary handling and/or marking has taken place.
- E. A scientific collecting license may be issued for the purpose of conducting aquatic management.

#1316 - LICENSE REQUIREMENTS

A. Application Procedures

1. At least thirty (30) days prior to the anticipated need for a license, applicants must apply on forms provided by the Division. The application must include payment in the amount of the license fee established in § 33-4-102, C.R.S., as specified in 2 CCR 406-0: Appendix F.
2. Applications must include a detailed description of project objectives, sampling methodologies, sampling sites (with a map upon the Division's request), species and quantity of wildlife to be taken or possessed, reasons why the collection is not possible during an open season or why collections would exceed the established bag limits, a description of the proposed disposition of collected wildlife and any other information the Division finds relevant to its decision whether to approve an application.
3. Applications for the purpose of conducting bona fide scientific research must include a detailed study plan which contains the following elements: a statement of the need for the study and expected management application and benefit to the state; a description of study area(s), data collection and analytical methodologies which demonstrate ability to meet study objectives; and a description of financial and other resources which demonstrate ability to meet study objectives.
4. All applications shall be approved by the appropriate Regional Manager(s), and Terrestrial or Aquatic Section manager or their designees. The decision whether to approve an application will be based on the activity's potential impact on state wildlife resources. When approving an application, the Division may include any license terms it finds reasonably necessary to further the purposes of articles 1 to 6 of title 33, C.R.S.
5. Federal or state agencies applying for a job-related scientific collecting license shall be exempt from remitting the license fee but must comply with all other provisions of this chapter. The license fee will be required for projects outside normal agency duties.
6. Applications must state whether any proposed activity will occur within one mile of designated critical habitat for any species listed as threatened or endangered under the federal Endangered Species Act, 16 U.S.C. § 1531, *et seq.*
7. If an application is denied the applicant shall be notified in writing of the reasons therefor. Applications may be denied for the following reasons:
 - a. The Division determines the proposed collection is not for a purpose identified in #1315.
 - b. The collecting could be conducted during an established season with an appropriate hunting, fishing, or trapping license.

- c. The Division determines the proposed activity may adversely affect (i) any wildlife that is the property of the state under 33-1-101(2), C.R.S., including but not limited to species protected by the Colorado Nongame, Endangered, or Threatened Species Conservation Act, § 33-2-101, C.R.S., et seq., or the federal Endangered Species Act, 16 U.S.C. § 1531, et seq., or (ii) any wildlife habitat.
- d. The application is incomplete.
- e. The application fee is not included.
- f. Information being sought by the study is already available, as determined by the Division.
- g. Reporting and notification requirements for a current or previous license issued to the applicant have not been met.
- h. Applicant has failed to show compliance with any other applicable local, state, federal, or tribal law, including other applicable permitting or licensing requirements.

B. Licensing

- 1. The license will expire on the date specified in the license, which will be the minimum time the Division determines is necessary to accomplish the purpose of the license or 12 months after the license is issued, whichever is sooner.
- 2. The Licensee shall notify the Division personnel specified in the license prior to engaging in any activity authorized by the license.
- 3. The license will specify the methods of take authorized. Only a license for a bona fide scientific research may authorize the methods described in § 33-6-206(1), C.R.S.
- 4. A license for educational purposes will not authorize removing live wildlife from the wild.
- 5. The Division may revoke, suspend, annul, limit, or modify a license if:
 - a. the Licensee violates any provision of the license;
 - b. the Licensee violates any local, state, or federal law;
 - c. the Licensee supplied false information in its application;
 - d. the Division finds revocation, suspension, annulment, limitation, or modification necessary to avoid substantial danger to public health and safety; or
 - e. the Division finds revocation, suspension, annulment, limitation, or modification necessary to further the purposes of articles 1 to 6 of title 33, C.R.S.

C. Reporting

- 1. The Licensee shall provide the Division with a report within thirty (30) days of the expiration date of the license or upon request by the Division. Such report shall include all information and findings as required by the Division using appropriate forms supplied by the Division.

2. Failure to submit a complete report within thirty (30) days of license expiration or upon request by the Division, shall result in denial of future licenses for up to three (3) years.

#1317 - SPECIAL PROVISIONS

- A. The Licensee must carry the license when engaging in any activity authorized in the license.
- B. A scientific collection license may allow employees, agents, or students under the supervision of the licensee to assist the licensee in performing activities authorized in the license. Any such employees, agents or students shall carry a copy of the license while engaged in field work.
- C. Division employees acting within the scope of their employment are not required to obtain a scientific collecting license.

Editor's Notes

History

Chapter 13 recodified as 2 CCR 406-13 on 04/01/2009; for history and versions prior to 04/01/2009, see 2 CCR 406-8.

Section #1317 B eff. 01/01/2014.

Section #1315 B eff. 11/01/2016. Section #1317 B repealed eff. 11/01/2016.

Entire rule eff. 05/01/2023.